

25STCV10206 25STCV10206

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Case Number: 25STCV10206 Hearing Date: August 25, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 25, 2026

Case Name: Louie v. Sookdeo, M.D., et al.

Case

No.: 25STCV10206

Matter: Demurrer

Moving

Party: Defendants Ravi Sookdeo
and Healthcare Partners Medical Group, P.C.

Responding Party: Plaintiff Betty Lou

Tentative

Ruling: Defendants Ravi Sookdeo
and Healthcare Partners Medical Group, P.C.'s demurrer is sustained.

Plaintiff

Betty Lou ("Plaintiff") filed this action against Defendants Ravi Sookdeo, M.D., Optum Urgent Care, Healthcare Partners Montebello Urgent Care Center (collectively "Defendants"), and Does 1 to 150. Plaintiff's First Amended Complaint ("FAC") alleged two causes of action against Defendants for: (1) negligence,

medical negligence; and (2) intentional infliction of emotional distress.

On March 3, 2026, the Court sustained Defendants Ravi Sookdeo, who was erroneously sued as Ravi Sookdeo, M.D., and Healthcare Partners Medical Group, P.C., who was erroneously sued as Optum Urgent Care, Healthcare Partners Montebello Urgent Care Center's (collectively "Movants") demurrer to the second cause of action with leave to amend.

On April 22, 2026, Plaintiff filed a Second Amended Complaint ("SAC") realleging the same causes of action.

Movants demur to Plaintiff's second cause of action for intentional infliction of emotional distress. Plaintiff opposes.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

Analysis

Meet and Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .”

(Code Civ. Proc. § 430.41, subd. (a).)

On May 18,

2026, the parties spoke to discuss the issues that Movants intended to demur to. (Ligorsky Decl., ¶ 4.) Thus, the parties fulfilled their meet-and-confer obligations.

Demurrer

Movants

demur to Plaintiff’s second cause of action for intentional infliction of emotional distress for failure to allege sufficient facts to constitute a cause of action.

The

elements for intentional infliction of emotional distress are: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (Hughes v. Pairç(2009) 46 Cal.4th 1035, 1050 (Hughes).) “The tort calls for intentional, or at least reckless conduct—conduct intended to inflict injury or engaged in with the realization that injury will result.” (Davidson v. City of Westminster (1982) 32 Cal.3d 197, 210.) “An essential element of such a claim is a pleading of outrageous conduct beyond the bounds of human decency.” (Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 80.) “An employer is vicariously liable for the torts of its employees committed within the scope of the employment.” (Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 296 (Lisa).)

Movants

argue that Plaintiff has not alleged facts that each defendant acted with intent to cause intentional infliction of emotional distress, and that each defendant committed an act that was extreme and outrageous, or that the alleged conduct caused emotional distress.

“[A]n

employer is liable for risks 'arising out of the employment.' [Citations.] [¶]

A risk arises out of the employment when 'in the context of the particular enterprise an employee's conduct is not so unusual or startling that it would seem unfair to include the loss resulting from it among other costs of the employer's business. [Citations.] In other words, where the question is one of vicarious liability, the inquiry should be whether the risk was one "that may fairly be regarded as typical of or broadly incidental" to the enterprise undertaken by the employer. [Citation.]' [Citation.]

Accordingly, the employer's liability extends beyond his actual or possible control of the employee to include risks inherent in or created by the enterprise." (Farmers Ins. Group v. County of Santa Clara (1995) 11 Cal.4th 992, 1003.) But, "an employer will not be held vicariously liable for an employee's malicious or tortious conduct if the employee substantially deviates from the employment duties for personal purposes." (Id. at 1004-05.)

Movants

contend that their demurrer should be sustained because, as employers, they cannot be held liable for the torts of DOE 1. The Court is not persuaded.

Assuming Plaintiff had alleged a viable cause of action, Defendants may be liable under the principle of respondeat superior. "While the employee thus need not have intended to further the employer's interests, the employer will not be held liable for an assault or other intentional tort that did not have a causal nexus to the employee's work." (Lisa, supra, 12 Cal.4th 291, 297.)

Here, Plaintiff alleges that DOE 1, an employee of Defendant, was conducting an ultrasound when the events occurred. (SAC, ¶ 14.) The alleged event occurred during the execution of DOE 1's employment.

As to the

element of emotional distress, Plaintiff alleges that the act of DOE 1 "shoving the ultrasound wand so aggressively into the elderly Plaintiff's abdomen that an old surgical scar ripped open at a length of 3.5 inches, causing bleeding and pain, and causing Plaintiff to yell out in pain; despite Defendant sonographer (DOE 1) hearing and observing Plaintiff physically and verbally respond to the extreme pain caused by the aggressive and forceful contact of the ultrasound wand ripping open her old surgical scar. . ." (SAC, ¶ 25.) However, the alleged harm that DOE 1 allegedly caused was physical and not emotional distress. (SAC, ¶¶ 25-26.) "Intentional infliction of emotional distress requires conduct which is especially calculated to cause and does cause

the claimant mental distress of a very serious nature." (Coon v. Joseph (1987) 192 Cal.App.3d 1269, 1272.) The Court previously addressed the defect at the March 23, 2026, hearing, and Plaintiff has failed to cure the defect. Plaintiff only offers conclusory statements. Moreover, DOE 1's alleged reckless disregard concerns how DOE 1 conducted the ultrasound, not the conduct with reckless disregard for causing emotional distress to Plaintiff. Plaintiff's opposition does not address causation. (Opp., 4:22-6:27.)

Thus, the Court sustains Movant's demurrer as to Plaintiff's second cause of action. Plaintiff was provided with an opportunity to amend her second cause of action and did not provide any additional allegations to correct the defects in her pleading. Thus, leave to amend will be denied because Plaintiff has not met her burden to show that she can amend her pleading for a viable cause of action.

Conclusion

The Court sustains Movant's demurrer as to Plaintiff's second cause of action without leave to amend. Defendant to Answer by September 3, 2026